

Court No. - 3

Case :- WRIT - C No. - 34662 of 2021

Petitioner :- Almehtab Industries Pvt. Ltd.

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Raghav Dev Garg

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Brij Raj Singh,J.

Heard Sri Anurag Khanna, learned Senior Advocate assisted by Sri Raghav Dev Garg, learned counsel for the petitioner, Sri B.P. Singh Kachhawah, learned Standing Counsel for the State-respondent and Sri Rajesh Yadav, learned counsel for the respondent-Electricity Distribution Corporation.

Submission of learned Senior Counsel is that the respondent authorities have acted in a highhanded manner. Neither the disconnection order was preceded by the statutory notice nor any notice had been issued under Clause 4.36 of the U.P. Electricity Supply Code, 2005, wherein, minimum 15 days must be given to the consumer. In the dispute as had arisen in the year 2015, the matter was carried to the Consumer Grievance Redressal Forum constituted under Clause 7.10 of the U.P. Electricity Supply Code, 2005. That proceeding was withdrawn by order dated 28.02.2019, as the parties intended to settle the matter privately.

Learned Senior Counsel for the petitioner further contends that the respondent did not make any effort to settle the dispute. The Distribution Corporation would contend that the petitioner never approached it for settlement.

Whatever be the correct fact in that regard, it cannot be disputed that up to a point the parties were seeking to settle the matter amongst themselves, as to the disputed bill. It also cannot be disputed that no further order or final bill came to be raised as to the disputed demand before the disconnection was made and no time was granted to the petitioner to clear the default.

Matter requires consideration.

Learned Counsel for the respondent - Distribution Corporation prays for and is granted two weeks' time to file counter affidavit. Petitioner shall have one week thereafter to file rejoinder affidavit.

List this case on 11.02.2022.

In the meanwhile, subject to deposit of Rs.1,00,000/- (one lac) by the petitioner before respondent no.4, its electricity connection shall be connected forthwith and no further recovery shall be made pursuant to the impugned demand.

The electricity connection shall not be disconnected during pendency of this petition subject to petitioner paying the current dues continuously. It is made clear that Rs.1,00,000/- has been specified as that may be the approximate demand of four days (according to the petitioner) from 28.10.2015 to 02.11.2015 for which the dispute exists between the parties.

In the meanwhile, it is also left open to the respondent-corporation to consider and conclude the matter as to the actual demand. The petitioner undertakes to cooperate the same.

Order Date :- 7.1.2022

Atul

Court No. - 21

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Counsel for Petitioner :- Raghav Dev Garg

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. Counsel for the petitioner prays for and is granted two weeks time to file rejoinder affidavit.

2. List on 3.8.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.5.2023

Jaideep/-